Revision Date:
01/01/2025

Background:
Sponsored noncitizens must be evaluated for CalFresh or California Food Assistance Program (CFAP) based on sponsorship and deeming regulations.

Purpose:
This section outlines sponsorship and deeming regulations for CalFresh and CFAP eligibility.

Policy:
The following are definitions of common terms that will be used throughout this section:

Term	Definition
Sponsored Noncitizen	A noncitizen Legal Permanent Resident (LPR) for whom a sponsor signed the Affidavit of Support (I-864) form.
Sponsor	An individual who has signed an I-864 or the Contract Between Sponsor and Household Member (I-864A) promising to financially support a LPR as a condition of their entry into the United States (US).
Deeming	Attribution of a sponsor's income and resources to the sponsored noncitizen.
I-864	The form a sponsor must sign to show they have adequate income and/or assets to support the sponsored noncitizen.
I-864A	An attachment to an I-864 that must be signed by the sponsor who is completing an I-864 and a household (HH) member of the sponsor who promises to make their income and/or assets available to help support the sponsored noncitizen. The I-864A is only used when a sponsor's income and assets do not meet the income requirements of the I-864 and a HH member chooses to combine their income and assets with those of the sponsor to meet the requirements.

The income and resources of a sponsor and the sponsor's spouse, if one signed an I-864A, must be counted during the eligibility determination of a sponsored noncitizen, unless the sponsored noncitizen meets an exemption or opts out. Resources will only be counted if the HH is not Categorically Eligible (CE) or Modified Categorically Eligible (MCE). Sponsorship deeming ends when one of the following circumstances applies to the sponsored noncitizen:

- Achieves US citizenship through naturalization.
- Has 40 qualifying quarters of work.
- Loses LPR status and leaves the US permanently.
- Death occurs (or upon death of the sponsor).

Sponsored noncitizens will be identified by the Class of Admission (COA) listed as category on the I-551 Permanent Resident Card. Refer to the United States Citizenship and Immigration Services (USCIS) COA table found in the Eligibility Essentials Desk Aids for a full list of COAs and which ones correspond to sponsored noncitizens.

1. Exemptions to Sponsorship Deeming

A sponsored noncitizen will be exempt from sponsorship deeming when any of the following circumstances apply to them:

- Sponsorship occurred prior to December 19, 1997.
- The sponsor signed Form I-134 Declaration of Financial Support and not an I-864.
- Is a victim of human trafficking, domestic violence, or other serious crimes.
- Is participating in the same CalFresh HH as the sponsor.
- Is indigent.
- Is sponsored by an organization or group and not an individual.
- Is under 18 years of age.

2. Options Available to Sponsored Noncitizens

Prior to determining eligibility, the following three options must be explained to non-exempt sponsored noncitizens and allow them to choose the option they would like for themselves:

- Be evaluated for indigence;
- Opt out of receiving CalFresh/CFAP benefits; or
- Provide the sponsor's information.

Document in the case record that the options were explained, and which option was chosen. The table below provides a description of each option:

Option	Description
Indigence evaluation	A sponsored noncitizen may self-declare that that they are indigent (not being supported by their sponsor). Once a determination of indigence is made, the noncitizen remains indigent for 12 months. A noncitizen is determined to be indigent when their HH's current income plus any cash contributions and/or in-kind assistance the sponsor provides them is below 130% of the Federal Poverty Level (FPL) for the HH size. Verification of the sponsor's income and in-kind assistance is not needed to make an indigence determination. However, if the noncitizen receives cash contributions from the sponsor, it must be counted when determining eligibility to CalFresh. When determined to be indigent, the name of the sponsored noncitizen and their sponsor(s) must be reported to USCIS via USCIS Letter for Indigent Sponsored Noncitizens (09-99) form.
Opt out	Sponsored noncitizens can opt out of applying for CalFresh/CFAP prior to a determination of eligibility being made. If the noncitizen opts out, they will be considered an ineligible HH member. Once the sponsored noncitizen opts out, they are not required to provide any information regarding their immigration status and sponsor.
Provide sponsor's information	Sponsored noncitizens that are not indigent and do not opt out must provide the sponsor's information.

Refer to CalFresh Processing Guide 157-01 Sponsored Noncitizens for guidance on determining whether sponsorship provisions apply, conducting the indigence evaluation, requesting sponsorship information, and the Notices of Action (NOA) required.

3. Victims of Human Trafficking, Domestic Violence, or Other Serious Crimes

Sponsored noncitizens who are victims of human trafficking, domestic violence, or other serious crimes are exempt from sponsorship deeming. The exemption will run for a 12-month period when the sponsored noncitizen does not live with the person causing the abuse and there is a connection between the abuse and the need for benefits. The list below includes, but is not limited to, circumstances that may demonstrate a substantial connection between the abuse and the need for benefits:

- Become self-sufficient following separation from the abuser.
- Escape the abuser and/or the community in which the abuser lives.
- Fulfill a financial need due to loss of financial support from the abuser as a result of the separation.
- Fulfill a financial need caused by the loss of a job due to the abuse.

The exemption must be reassessed every 12 months. After the initial 12 months have passed the noncitizen must demonstrate that the abuse has been recognized in an order by a judge or a determination made by USCIS to continue receiving the exemption.

4. Providing Sponsorship Information and Documentation

Sponsored noncitizens, besides those that are exempt or opting out, are responsible for providing the I-864 and I-864A, if one was signed, to verify their sponsor(s). Prior to requesting the I-864 and I-864A, if one was signed, attempt to verify the sponsor using a Systematic Alien Verification for Entitlements (SAVE). Refer to the table below for more information on how to verify the sponsor.

If the…	then…
SAVE report in the California Statewide Automated Welfare System (CalSAWS) does not list the sponsor nor the date the I-864 and I-864A, if applicable, was signed,	order an electronic SAVE (eSAVE).
eSAVE does not list the sponsor nor the date the I-864 and I-864A, if applicable, was signed,	send a Request for Verification (CW 2200) to the sponsored noncitizen asking them to provide the I-864 and I-864A, if applicable. Allow 10 days to provide.
sponsored noncitizen cannot provide the I-864 and I-864A, if applicable,	send a G-845 Verification Request and G-845 Supplement Verification Request to USCIS to verify sponsorship.

Note: Sponsorship verification and documentation is not required when determining CalFresh Expedited Services (CFES).

Sponsored noncitizens, besides those that are exempt or opting out, must provide the Sponsor's Statement of Facts Income and Resources (SAR 22) along with mandatory verifications at intake,

recertification, and anytime a sponsored noncitizen, who is not exempt, requests CalFresh/CFAP mid-period. A Sponsor's Semi-Annual Income and Resources Report (SAR 72) along with mandatory verifications must be provided with the Eligibility Status Report (SAR 7).

5. Failure or Refusal to Provide Sponsor's Information

The sponsored noncitizen will be considered an ineligible noncitizen if they fail or refuse to provide the sponsor's information or are unable to obtain it. Each adult sponsored noncitizen will be responsible for providing their sponsorship information. In situations where the sponsor's information is not provided, the following must be applied:

If the same sponsor is responsible for the entire HH and it includes…	then…
no children under the age of 18,	the entire HH is ineligible until the required information is provided and/or verified.
children under the age of 18,	sponsorship regulations do not apply to children under 18. Evaluate eligibility to CalFresh for the children. Sponsored HH members 18 or older will be determined as ineligible noncitizens.

6. Deeming Rules

Sponsored noncitizens that have been in the US for less than five years and do not meet a noncitizen condition of eligibility, are ineligible to federal CalFresh but may receive benefits through CFAP. Refer to Section 63-154 Noncitizen Status for more information. Sponsorship deeming rules apply to CFAP eligible sponsored noncitizens as follows:

If it is…	sponsorship deeming rules…
less than 3 years from the date the I-864 was signed,	apply.
within 3-5 years of the date the I-864 was signed,	do not apply.
more than 5 years from the date the I-864 was signed,	apply and they are now eligible for federal benefits.

Once the sponsored noncitizen becomes eligible to federal CalFresh, deeming rules apply indefinitely or until the sponsored noncitizen:

- Achieves US citizenship through naturalization.
- Has 40 qualifying quarters of work.
- Loses LPR status and leaves the US permanently.
- Is deceased (or upon death of the sponsor).
- Meets a sponsorship deeming exemption.

7. Determining Deemed Income

Use the information provided on the SAR 22 and SAR 72 to calculate the deemed income for the sponsored noncitizen. Deemed income must be calculated at initial application, semi-annual report, recertification, and at any time CalFresh/CFAP is requested for a sponsored noncitizen. The following steps must be applied to determine the sponsored noncitizens deemed income:

Step	Action
1	Add the total monthly earned and unearned income of the sponsor and sponsor's spouse, if they signed an I-864A.
2	Deduct 20 percent from the earned income.
3	Deduct the CalFresh monthly gross income eligibility limit for a HH size equal to the sponsor's HH. **Note**: The sponsor's HH includes all individuals who are or could be claimed as dependents for federal income tax purposes.
4	The remaining amount is the income deemed available to the sponsored non-citizen.

Note: A sponsor's income reported for CalWORKs can be used for CalFresh/CFAP deeming purposes, but the steps listed above must be applied.

Direct cash payments provided by the sponsor and the sponsor's spouse, if they signed an I-864A, will not be considered income to the sponsored noncitizen unless the amount exceeds the deemed amount.

Example:	
Scenario	Based on the information reported at intake on the SAR 22 and the verification provided, it is determined that the income deemed to the sponsored noncitizen from their sponsor is $400. The sponsored noncitizen reports at intake that they receive a total of $600 per month in cash from their sponsor.
Outcome	$200 ($600 cash payment - $400 deemed income) would be counted in the budget as a cash gift, while $400 would be counted as deemed income from the sponsor to the sponsored noncitizen.

8. Deemed Income for HH's with Sponsored Children Under 18 or Multiple Sponsored Noncitizens

A noncitizen child under the age of 18 is exempt from sponsorship deeming. The child's share of the deemed income is not counted when determining eligibility. When a sponsor declares on the SAR 22 that they have signed an I-864 for multiple noncitizens, the share for the other sponsored noncitizens that are not part of the CalFresh HH will not be counted in the budget. The following steps must be applied to determine the share for the child under the age of 18 or the other sponsored noncitizens that are not part of the CalFresh HH:

Step	Action
1	Divide the total deemed income by the number of sponsored noncitizens to get each person's share.
2	Deduct the share for the child under the age of 18 and/or the other sponsored noncitizens that are not part of the CalFresh HH.
3	The remainder will be counted as unearned income when determining eligibility.

Review sponsorship deeming at the next recertification when a sponsored child, who was previously exempt due to age, turns 18.

Example:	
Scenario	Child is receiving CalFresh benefits in a HH with a certification period of January through December. The child turns 18 in August.
Outcome	Evaluate sponsorship deeming at the next recertification in December.

References:
All County Letter (ACL) 11-06, 11-06E, 21-24.
Manual of Policy and Procedures (MPP) 63-300.5(e)(8), 63-405.3,63-405.7, 63-503.49.
Code of Federal Regulations (CFR) 273.2(f)(10)(vi), 273.4(c).

Sunset Date:
This policy will be reviewed for continuance on or by 12/31/2027.

Approval for Release:



Rick Wanne, Director
Self-Sufficiency Services